

Ref No.: BD-ACEPM-SAMCO-LET-026

Date: Monday, 02st of February 2026

To: SAMCO National Construction Company

Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District

Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Response to Your Letter No. BD-ACEPM-SAMCO-LET-025 Regarding First Fix MEP Works.

Reference (S):

- 1) **Engineer's Letter Ref. BD-ACEPM-SAMCO-LET-025 dated 27/01/2026**
- 2) **Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-0049 dated 31/01/2026**
- 3) **VI Ref. BD-ACEPM-SAMCO-VI-0003 dated 09/11/2025**
- 4) **VI Ref. BD-ACEPM-SAMCO-VI-0004 dated 11/01/2026**

Dear Sir,

Reference is made to the above-mentioned subject, the Engineer's letter Ref. No. (1), and the Contractor's letter Ref. No. (2). The Engineer hereby provides the following clarification.

Further to the meeting held at the Employer's premises on 25 January 2026, during which the Contractor's contractual interpretation was discussed in detail, all Parties agreed that the purpose of the meeting was to clarify and eliminate any ambiguity related to the variation order procedure to be followed throughout the project lifecycle.

For the avoidance of doubt, and without imposing any additional responsibilities on the Contractor beyond those expressly stated in the Contract Documents, the Engineer confirms that Letter Ref. No. (2) clearly stipulated that the Contractor shall bear full responsibility and liability for the execution, performance, and coordination of any newly instructed works related to the MEP first fix at this stage.

Accordingly, and in response to the Contractor's request for the issuance of a Variation Instruction for the said works, the Engineer hereby confirms that all necessary instructions have already been duly issued under Engineer's Instructions Ref. No. (3) and Ref. No. (4), strictly in accordance with the provisions of the Contract.

Should any new or additional works potentially arise as a result of the Contractor's coordination studies between the various disciplines, the Contractor shall submit the relevant notice in accordance with the Contract, clearly identifying the anticipated changes. The Contractor shall not proceed with such works and shall await the Employer's and the Engineer's further written instructions before taking any action.



In light of the above, the Contractor is hereby instructed to expedite the execution of the issued Variation Instructions in parallel with the submission of a detailed variation proposal, strictly in accordance with the Particular Conditions Sub-Clause 13.3 (Variation Procedure).

Yours faithfully,



Attachment(s):

CC:

Eng. Mohamed Hamza - Projects Manager
Eng. Mostafa Gala - Owner representative
Eng. Ahmed Saafan – Project Controls Director
Eng. Ramy Refaat – Commercial Contracts Director
Eng. Osama Waly – PCO representative

M.S.